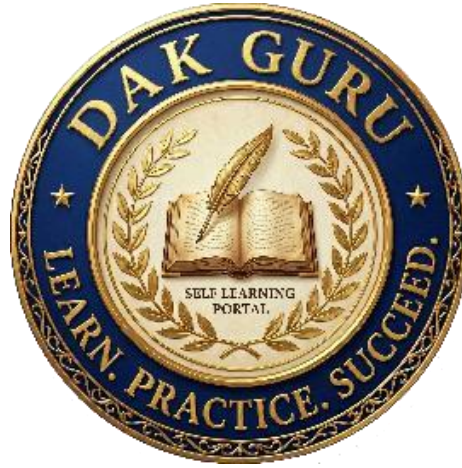


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Central Civil Services (Classification, Control and Appeal) Rules, 1965

— **CCS (CCA) Rules, 1965** —

Comprehensive Notes for
LDCE Inspector of Posts (IP) & PS Group 'B' Examinations

*Updated to reflect the CCS (CCA) Amendment Rules, 2022 (G.S.R. 156(E) dt. 19.10.2022)
and verified against primary gazette / DoP&T sources*

DISCLAIMER

This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and to incorporate recent changes, amendments and updates to the relevant Acts, Rules and Regulations, this document is intended as a study aid only and does not constitute legal or official advice. Statutory provisions, time-limits and orders are amended from time to time; readers and students are strongly advised to refer to the official Gazette of India and the Department of Personnel & Training / Department of Posts sources for the most reliable and authoritative position before acting upon any provision.

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Introduction & How to Use These Notes

The **Central Civil Services (Classification, Control and Appeal) Rules, 1965** — popularly called the **CCS (CCA) Rules** — are the master disciplinary code for civilian Central Government employees. They answer four practical questions that every disciplinary matter turns on: **Who** the employee is (classification), **Who** can take action against him (competent authority), **What** action can be taken (penalties), and **How** that action must be taken (procedure, appeal, revision and review).

For the LDCE Inspector of Posts (IP) and PS Group 'B' examinations, this is one of the highest-yielding subjects. Examiners repeatedly test the same pressure points: the 48-hour rule, deemed suspension, the 90-day review and the outer time-limits on suspension, the exact list of minor and major penalties, the difference between Rule 14 and Rule 16 procedure, the 15-day and 45-day timelines, and the appellate/revisional hierarchy in the postal set-up.

Authority and currency. The rules were first published vide Notification No. F-7/2/63-Ests.(A) dated 20 November 1965 (S.O. 3703) and have been amended many times. The most significant recent change for examination purposes is the **CCS (CCA) Amendment Rules, 2022 (G.S.R. 156(E) dated 19 October 2022)**, which re-cast the provisos to Rule 10(7) on the maximum duration of suspension. These notes are written to reflect the position as in force, and every update box below cites the governing notification, order or judgment so that currency can be independently checked against the official gazette or the DoP&T website (dopt.gov.in).

Part I — General (Rules 1–3)

Rule 1 — Short Title and Commencement

- These rules may be called the Central Civil Services (Classification, Control and Appeal) Rules, 1965.
- They came into force with effect from **1 December 1965**.

Rule 2 — Interpretation (Key Definitions)

Unless the context otherwise requires, the following expressions carry the meanings given below. These definitions decide who is competent to act, so they are tested directly.

- **Appointing Authority** — in relation to a Government servant, means (i) the authority empowered to make appointments to the Service of which he is a member; or (ii) the authority empowered to make appointments to the post he holds; or (iii) the authority that actually appointed him to that Service, grade or post — **whichever of these is the highest authority.**
- **Cadre Authority** — has the same meaning, in relation to a Service, as in the rules regulating that Service.
- **Central Civil Service / Central Civil Post** — includes a civilian Service or civilian post of the corresponding Group in the Defence Services.
- **Commission** — means the Union Public Service Commission (UPSC).
- **Defence Services** — services under the Government of India in the Ministry of Defence, paid out of the Defence Services Estimates.
- **Department of the Government of India** — any establishment or organisation declared by the President, by notification in the Official Gazette, to be a department.
- **Disciplinary Authority** — the authority competent under these rules to impose on a Government servant any of the penalties specified in Rule 11.
- **Government Servant** — a person who holds a civil post under the Union, and includes a person in foreign service, a person whose services are temporarily placed at the disposal of the Central Government by a State Government, and a person appointed to a temporary post.
- **Head of the Department** — for the purpose of exercising powers as appointing, disciplinary, appellate or reviewing authority, the authority declared to be the head of the department under the Fundamental Rules and Supplementary Rules (FR & SR).
- **Head of the Office** — for the same purpose, the authority declared to be the head of the office under the General Financial Rules (GFR).
- **Schedule** — means the Schedule to these rules.

- **Secretary** — the Secretary to the Government of India in any Ministry or Department, and includes an Additional Secretary, Joint Secretary, Secretary to the Prime Minister, Secretary to the President, Secretary to the Cabinet, etc.
- **Service** — means a civil service of the Union.

Rule 3 — Application

These rules apply to every Government servant, including every civilian Government servant in the Defence Services, but do NOT apply to the following categories:

- Railway Government servants;
- members of an All India Service;
- persons in casual employment;
- persons for whom special provision has been made by separate rules or contract;
- Extra-Departmental Agents (see correction box below);
- monthly-rated staff paid from contingencies, other than those brought on to the regular establishment;
- monthly-rated work-charged and other employees not on the regular establishment;
- daily-rated staff paid from contingencies; and
- all hot-weather and monsoon establishment.

Overriding power. Notwithstanding the above, the President may, by order, exclude any group of Government servants from the operation of all or any of these rules [Rule 3(2)].

STATUTORY UPDATE: Extra-Departmental Agents are now Gramin Dak Sevaks

The term “Extra-Departmental Agents” (EDA) in Rule 3(1)(e) is, in the postal context, obsolete terminology. EDAs were long ago re-designated as Gramin Dak Sevaks (GDS).

GDS are NOT governed by the CCS (CCA) Rules, 1965. Their conduct and disciplinary matters are governed by the Department of Posts, Gramin Dak Sevaks (Conduct and Engagement) Rules, 2020, which were issued vide DoP letter No. 17-30/2019-GDS dated 14 February 2020 in supersession of the 2011 Rules. The 2020 Rules rationalised the five earlier GDS categories into three — Branch Postmaster (BPM), Assistant Branch Postmaster (ABPM) and Dak Sevak.

Part II — Classification (Rules 4–7)

Rule 4 — Classification of Services

The Civil Services of the Union are classified into four groups:

1. Central Civil Services, **Group 'A'**
2. Central Civil Services, **Group 'B'**
3. Central Civil Services, **Group 'C'**
4. Central Civil Services, **Group 'D'** (now abolished — see below)

If a Service consists of more than one grade, different grades of that Service may be placed in different groups.

STATUTORY UPDATE: Abolition of Group 'D'

Following the 6th CPC and the reclassification carried out vide DoP&T Notification S.O. 946(E) dated 9 April 2009, all erstwhile Group 'D' posts were upgraded and merged into Group 'C'. There is, in practice, no longer any Group 'D' in the Central Civil Services; the former Group 'D' employees are now Multi-Tasking Staff (MTS) within Group 'C'.

Examination tip: the rule text still mentions four groups, but the live position is that Group 'D' stands abolished. Read every reference to “Group 'D'” in Rules 4 to 9 as having been absorbed into Group 'C'.

Rule 5 — Constitution of the Central Civil Services

The Central Civil Services of Groups 'A', 'B', 'C' and 'D' consist of the Services and grades of Services specified in the Schedule to the rules.

Rule 6 — Classification of Posts

Civil posts under the Union are classified, corresponding to the Services above, as Central Civil Posts of Group 'A', 'B', 'C' and 'D'. The classification is now based on the Pay Level in the 7th CPC Pay Matrix.

S. No.	Pay Level in the Pay Matrix (7th CPC)	Classification of Post
1	Pay Level 10 and above	Group 'A'
2	Pay Level 6 to 9	Group 'B'
3	Pay Level 1 to 5	Group 'C'

STUDY NOTE: Governing order for present classification

The pay-level-based classification is governed by DoP&T O.M. No. 11012/10/2016-Estt.A-III dated 9 November 2017. In summary: Group 'A' = Level 10 and above; Group 'B' = Level 6 to 9; Group 'C' = Level 1 to 5. (Earlier classification orders were S.O. 332(E) dated 20 April 1998 and S.O. 4225 of 2003; the 2017 order aligns the groups with the 7th CPC Pay Matrix.)

Rule 6-A — Correspondence with the Old 'Class' Nomenclature

For continuity with older service rules, the four-class system maps onto the present groups as follows: **Class I = Group 'A', Class II = Group 'B', Class III = Group 'C', and Class IV = Group 'D'.**

Rule 7 — General Central Service

Any Central Civil post of a given group that is not included in any other Central Civil Service is deemed to be part of the General Central Service of that group, and a Government servant appointed to such a post is deemed to be a member of that Service (unless he is already a member of some other Central Civil Service of the same group). Typical examples include scientists, NDRF personnel and various non-political executive posts.

Part III — Appointing Authority (Rules 8–9)**Rule 8 — Appointments to Group 'A' Services and Posts**

- All appointments to Central Civil Services, Group 'A' and Central Civil Posts, Group 'A' are made by the **President**.
- The President may, by general or special order and subject to conditions, delegate this power to any other authority.
- **Note:** For Goa, Daman & Diu, Dadra & Nagar Haveli, Arunachal Pradesh and Mizoram, the respective Administrators exercise the relevant powers.

Rule 9 — Appointments to Other Services and Posts

All appointments to Central Civil Posts of Group 'B', Group 'C' and Group 'D' included in the General Central Service are made by the authorities specified by a general or special

order of the President, or, where no such order exists, by the authorities specified in the Schedule.

STUDY NOTE: Read Group 'D' as Group 'C'

As explained under Part II, Group 'D' posts stand abolished and upgraded to Group 'C' (MTS). References to Group 'D' in Rule 9 should accordingly be read in the context of the reclassified Group 'C'.

Part IV — Suspension (Rule 10)

Rule 10 — Suspension

Suspension is a **preventive measure, not a penalty**. It temporarily keeps a Government servant away from duty while a disciplinary or criminal matter is examined; it does not by itself pre-judge guilt. A suspended employee remains in service and draws a **subsistence allowance** under FR 53 (broadly 50% of leave salary, reviewable after 90 days).

Who may suspend, and on what grounds [Rule 10(1)]

The appointing authority, any authority to which it is subordinate, the disciplinary authority, or any other authority empowered by the President may place a Government servant under suspension where —

- (a) a disciplinary proceeding against him is **contemplated or pending**; or
- (aa) in the opinion of the authority, he has engaged in activities **prejudicial to the security of the State**; or
- (b) a case against him in respect of any **criminal offence** is under investigation, inquiry or trial.

Deemed Suspension [Rule 10(2)] — the 48-hour rule

A Government servant is automatically (“deemed”) to have been placed under suspension by order of the appointing authority —

- (a) from the date of detention, if he is detained in custody (whether on a criminal charge or otherwise) for a period exceeding **48 hours**; and

- **(b)** from the date of conviction, if he is convicted of an offence and sentenced to imprisonment exceeding **48 hours**, and is not forthwith dismissed, removed or compulsorily retired.

Explanation. The 48 hours in clause (b) is computed from the commencement of imprisonment after conviction; intermittent periods of imprisonment are added together for this purpose.

Suspension following set-aside of a penalty [Rule 10(3) & (4)]

- Where a penalty of dismissal, removal or compulsory retirement is set aside in appeal or on review and the case is remitted for further inquiry, the suspension is deemed to have continued from the date of the original penalty order and remains in force until further orders [Rule 10(3)].
- Where such a penalty is set aside or declared void by a court of law and the disciplinary authority decides to hold a fresh inquiry, the Government servant is deemed to have been placed under suspension by the appointing authority from the date of the original penalty order, and continues under suspension until further orders [Rule 10(4)].

Continuation, review and revocation [Rule 10(5), (6) & (7)]

- An order of suspension continues in force until modified or revoked by the competent authority [Rule 10(5)(a)].
- **Mandatory review:** every order of suspension must be reviewed by the competent authority, on the recommendation of a **Review Committee**, **before the expiry of 90 days** from the date suspension takes effect. The authority then either extends or revokes the suspension [Rule 10(6)].
- Each extension granted on review **shall not exceed 180 days at a time** [Rule 10(6)].
- **Validity ceiling:** a suspension order is **not valid beyond 90 days** unless it is extended after review before the expiry of those 90 days [Rule 10(7)]. In short — review within 90 days, extend by not more than 180 days at a time.
- For deemed suspension under sub-rule (2), no review is necessary while the employee continues in detention; the 90-day period in such a case is counted from the date he is released from detention (or the date his release is intimated to the appointing authority), whichever is later.

Part V – Penalties and Disciplinary Authorities (Rules 11–13)

Rule 11 – Penalties

For good and sufficient reasons, the following penalties may be imposed on a Government servant. They are divided into minor penalties (items i to iv) and major penalties (items v to ix). The single most-tested fact is which penalty falls in which category.

Minor Penalties

- (i) **Censure.**
- (ii) **Withholding of promotion.**
- (iii) **Recovery from pay** of the whole or part of any pecuniary loss caused to Government by negligence or breach of orders.
- (iii)(a) **Reduction to a lower stage in the time-scale of pay by one stage** for a period not exceeding **three years**, without cumulative effect and not adversely affecting pension.
- (iv) **Withholding of increments of pay.**

Major Penalties

- (v) **Reduction to a lower stage in the time-scale of pay for a specified period** (other than the minor (iii)(a) form), with directions on whether increments will be earned during the reduction and whether the reduction will postpone future increments.
- (vi) **Reduction to a lower time-scale of pay, grade, post or Service** for a specified period, which bars promotion during that period, with directions as to postponement of future increments and restoration of seniority.
- (vii) **Compulsory retirement.**
- (viii) **Removal from service** – which is NOT a disqualification for future employment under Government.
- (ix) **Dismissal from service** – which ordinarily IS a disqualification for future employment under Government.

STUDY NOTE: Removal v. Dismissal — the classic distinction

Both end the employment, but the consequence differs. Removal (viii) does not disqualify the person from future Government employment; Dismissal (ix) ordinarily does. This single difference is a recurring one-mark question.

Mandatory penalty proviso. In every case where the charge of possessing assets disproportionate to known sources of income, or the charge of accepting illegal gratification as a motive or reward for an official act, is established, the penalty of **removal or dismissal** must be imposed.

Explanation — What is NOT a penalty

The following actions do not amount to a penalty within the meaning of Rule 11:

- withholding of increments for failure to pass a departmental examination, if that is a term of appointment;
- stoppage at the efficiency bar on the ground of unfitness to cross it;
- non-promotion, whether in a substantive or officiating capacity;
- reversion of a person officiating in a higher service/grade, on grounds of unsuitability or other administrative grounds unconnected with conduct;
- reversion of a person appointed on probation, at the end of probation, in accordance with the terms of appointment;
- compulsory retirement on superannuation or under retirement rules;
- termination of service of a probationer, or of a temporary servant under Rule 5(1) of the CCS (Temporary Service) Rules, 1965; and
- compensation awarded on the recommendation of the Complaints Committee / Internal Committee on a complaint of sexual harassment under Rule 3-C of the CCS (Conduct) Rules, 1964.

Important Government Decisions under Rule 11

- **“Censure” is a penalty; a “warning” is NOT a penalty.** Censure is the minimum formal penalty.
- An official under suspension or facing departmental proceedings is to be allowed to appear in a departmental examination.
- **Concurrent or consecutive running of penalties:** when a second or subsequent penalty is imposed during the currency of an earlier one, the disciplinary authority

must state clearly in the order whether the penalties will run concurrently or consecutively.

Rule 12 – Disciplinary Authorities

- The President may impose any of the penalties in Rule 11 on any Government servant.
- The appointing authority, the authority specified in the Schedule, or any other empowered authority may impose penalties on a Government servant.
- Where a Government servant is serving in an office, the head of that office may impose penalties, except where the head of office is lower in rank than the authority competent to impose the penalty.
- **Major penalties (v) to (ix)** must be imposed by an authority not lower than the appointing authority.
- In respect of a probationer undergoing training at the **Lal Bahadur Shastri National Academy of Administration (LBSNAA)**, the Director is competent to impose the penalties in clauses (i) and (iii).

Government Decisions on Inquiry Procedure

- A departmental inquiry should ordinarily be completed within **six months** by the Inquiry Officer.
- The Inquiry Officer should be senior in rank to the charged officer.
- A panel of retired officers maintained for appointment as Inquiry Officers is valid for **three years**.
- Time limit for the charged official to furnish a written representation on the UPSC's advice: **15 days**.
- Time limit for concluding a major-penalty proceeding: **18 months** from the date of issue of the charge sheet.
- The inquiry report is submitted in two copies to the disciplinary authority.
- The “Hota Committee” made recommendations on streamlining disciplinary and vigilance inquiries.

Ceiling on the number of cases per Inquiry Officer / Defence Assistant (DoP norms)

S. No.	Role	Ceiling on number of cases
1	Inquiry Officer — retired official	8 cases in a year; not more than 4 at a time
2	Inquiry/Presenting Officer — serving (IP/ASP)	10 cases in a year; not more than 2 at a time
3	Defence Assistant — retired official	8 cases in a year; not more than 4 at a time
4	Defence Assistant — serving official	Not more than 3 cases at a time

Honorarium to Inquiry / Presenting Officers

STATUTORY UPDATE: Verified honorarium rates

The rates are governed by DoP&T O.M. No. 142/40/2015-AVD.I dated 15 September 2017 (read with the ceilings on number of cases above).

- **Serving Inquiry Officer (part-time):** honorarium equal to 15% of basic pay drawn; Presenting Officer: 10% of basic pay drawn.
- **Retired Inquiry Officer (lump-sum ceilings):** Category I (more than 10 witnesses) up to Rs. 75,000 per case; Category II (6–10 witnesses) up to Rs. 40,000 per case; Category III (fewer than 6 witnesses) up to Rs. 20,000 per case.
- **Additional allowances (retired IO):** transport allowance up to Rs. 40,000 per case and secretarial assistance up to Rs. 30,000 per case, subject to conditions.
- **Common proceedings:** an additional Rs. 5,000 is payable (to both retired and serving IOs).
- **Mode of payment:** 50% on submission of the inquiry report; the balance within 45 days. (Figures should be verified against the latest DoP/DoP&T order before quoting in a formal context, as honorarium ceilings are periodically revised.)

Rule 13 — Authority Competent to Institute Proceedings

- The President, or any authority empowered by him, may (a) institute disciplinary proceedings against any Government servant, or (b) direct a competent disciplinary authority to do so.

- Importantly, a disciplinary authority competent only to impose minor penalties (i)–(iv) MAY institute proceedings for the imposition of major penalties (v)–(ix), even though it cannot itself impose those major penalties. The competent higher authority then passes final orders.

Part VI — Procedure for Imposing Penalties (Rules 14–21)

Rule 14 — Procedure for Major Penalties

No major penalty (clauses v to ix) can be imposed except after a regular inquiry held in the manner laid down in Rules 14 and 15. The broad sequence is:

1. Where the disciplinary authority sees grounds to inquire into alleged misconduct, it may inquire itself or appoint an Inquiry Officer.
2. Articles of charge and a statement of imputations are drawn up and served on the Government servant, who is asked for a written statement of defence.
3. An Inquiry Officer and a Presenting Officer are appointed; the charged official may take the assistance of a Defence Assistant.
4. Evidence is led and witnesses are examined, with opportunity for cross-examination.
5. On conclusion, the Inquiry Officer prepares a report containing the matters listed below.

The inquiry report must contain:

- (a) the articles of charge and the statement of imputations;
- (b) the defence of the Government servant on each article of charge;
- (c) an assessment of the evidence on each article of charge; and
- (d) the findings on each article of charge and the reasons for them.

STATUTORY UPDATE: Sexual-harassment inquiries — the Internal Committee

An inquiry into a complaint of sexual harassment under Rule 3-C of the CCS (Conduct) Rules, 1964 is conducted by the Complaints Committee, which now aligns with the Internal Committee (IC) constituted under the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013. For this purpose the IC is deemed to be the Inquiring Authority.

Rule 15 — Action on the Inquiry Report

- If the disciplinary authority is not itself the inquiring authority, it may, for reasons recorded in writing, remit the case for further inquiry.
- The disciplinary authority forwards a copy of the inquiry report (together with its own tentative reasons for any disagreement with the findings) to the Government servant, who may submit a written representation **within 15 days** — whether or not the report is favourable to him.
- After considering the representation, the disciplinary authority records its findings and decides on the penalty (minor or major) to be imposed; once an inquiry under Rule 14 has been held, no separate opportunity on the quantum of major penalty need be given (the Constitution (Forty-second Amendment) having removed the second-stage show-cause notice).

Rule 16 — Procedure for Minor Penalties

For a minor penalty (clauses i to iv), a full Rule 14 inquiry is generally not required. The disciplinary authority must —

- (a) inform the Government servant in writing of the proposed action and the imputations of misconduct, and give a reasonable opportunity to make a representation;
- (b) consider any representation submitted; and
- (c) record a finding on each imputation of misconduct.

STUDY NOTE: When a minor-penalty case still needs a Rule 14 inquiry

If the minor penalty proposed is (iii) recovery of pecuniary loss or (iii)(a) reduction by one stage, or if the disciplinary authority itself is of the opinion that an inquiry is necessary (or the Government servant so requests and a denial would cause prejudice), the procedure of Rule 14 is followed even for a minor penalty.

Rule 17 — Communication of Orders

- The final order of the disciplinary authority is communicated to the Government servant, along with a copy of its findings on each article of charge.
- Where the disciplinary authority is not the inquiring authority, the communication also includes a statement of its findings with brief reasons for any disagreement with

the Inquiry Officer, and, where the UPSC was consulted, a copy of the Commission's advice and the reasons for any non-acceptance.

Rule 18 — Common Proceedings

Where two or more Government servants are involved in the same case, the President (or any authority competent to dismiss all of them) may order that disciplinary action be taken against all of them in a single common proceeding, specifying the authority that will function as disciplinary authority.

Rule 19 — Special Procedure in Certain Cases

Notwithstanding Rules 14 to 18, a regular inquiry may be dispensed with where —

- (i) the penalty is imposed on the ground of conduct that has led to conviction on a criminal charge;
- (ii) the disciplinary authority is satisfied, for reasons recorded in writing, that it is not reasonably practicable to hold an inquiry; or
- (iii) the President is satisfied that, in the interest of the security of the State, it is not expedient to hold an inquiry.

In such cases the disciplinary authority may consider the circumstances and pass such orders as it deems fit.

Rule 20 — Officers Lent to State Governments, etc.

- The borrowing authority has the powers of the appointing authority (for suspension) and of the disciplinary authority (for conducting proceedings) in respect of the lent officer.
- If the borrowing authority proposes a minor penalty (i)–(iv), it acts after consultation with the lending authority; if it proposes a major penalty (v)–(ix), it must place the officer's services back at the disposal of the lending authority. In case of a difference of opinion, the officer is returned to the lending authority.

Rule 21 — Officers Borrowed from State Governments, etc.

- When an officer borrowed from a State Government is suspended or proceeded against, the lending authority is informed of the circumstances.
- If a minor penalty is proposed, the disciplinary authority acts after consultation with the lending authority (with a special carve-out for Intelligence Bureau staff up to the rank of Assistant Central Intelligence Officer); if a major penalty is proposed, the

officer's services are placed back at the disposal of the lending authority. Differences of opinion are resolved in favour of returning the officer.

Part VII — Appeals (Rules 22–28)

Rule 22 — Orders Against Which No Appeal Lies

No appeal lies against:

- (i) any order made by the **President**;
- (ii) any order of an interlocutory nature, or a step-in-aid of the final disposal of a proceeding, other than an order of suspension; and
- (iii) any order passed by an inquiring authority in the course of an inquiry under Rule 14.

Rule 23 — Orders Against Which an Appeal Lies

Subject to Rule 22, a Government servant may appeal against:

- (i) an order of suspension under Rule 10;
- (ii) an order imposing any penalty under Rule 11;
- (iii) an order enhancing any penalty;
- (iv) an order denying or varying, to his disadvantage, his pay, allowances, pension or other conditions of service;
- (v) an order stopping him at the efficiency bar;
- (vi) an order reverting him, while officiating in a higher post, to a lower post otherwise than as a penalty;
- (vii) an order reducing or withholding pension, or denying the maximum pension admissible; and
- (viii) an order determining whether the period of suspension / removal etc. up to reinstatement is to be treated as duty for any purpose.

Rule 24 — Appellate Authority

A Government servant (including one who has ceased to be in service) may appeal to the authority specified in the Schedule or by order of the President. In broad terms:

- **Groups 'A' and 'B':** appeal lies to the appointing authority where the order was made by an authority subordinate to it, and to the President where the order was made by any other authority.
- **Group 'C':** appeal lies to the authority to which the authority that made the order is immediately subordinate.

Example (postal): an order passed by a Superintendent of Post Offices on an IP/ASP may be appealed to the DPS.

Disciplinary and Appellate Authorities — Department of Posts

S. No.	Category of officer	Disciplinary Authority	Appellate Authority
1	IPoS Group 'A' (SAG/HAG/JAG/STS/JTS)	President	—
2	PS Group 'B' (SPOs/SRMs/ADs, etc.)	DG (Posts)	President
3	PS Group 'B' (SPOs/SRMs/ADs, etc.)	CPMG	DG (Posts)
4	Group 'B' Gazetted (ASP/ASRM)	CPMG	Member (P)
5	Group 'B' Gazetted (ASP/ASRM)	DPS	CPMG
6	Group 'B' Non-Gazetted (IP/IRM)	DPS	PMG / CPMG
7	Group 'C' (PA/SA)	SSPOs/SPOs, SSRMs/SRMs	DPS
8	Group 'C' (Postman/Mail Guard, MTS)	IP/IRM/Postmaster	SPOs/SSPOs, SRM/SSRMs

STUDY NOTE: Appellate authority for GDS

GDS are not covered by the table above. For Gramin Dak Sevaks the appellate authority is generally the authority immediately superior to the disciplinary authority (e.g., if the SPOs is the disciplinary authority, the DPS is the appellate authority), as governed by the GDS (Conduct and Engagement) Rules, 2020 — not the CCS (CCA) Rules.

Office-bearers of recognised associations. A Government servant may appeal directly to the President against a penalty imposed (by any authority other than the President) in respect of his activities as an office-bearer of an association, federation or union participating in the Joint Consultative Machinery / Compulsory Arbitration Scheme.

Rule 25 — Period of Limitation for Appeals

- An appeal must be preferred within **45 days** from the date a copy of the order appealed against is delivered to the appellant.
- The appellate authority may admit a time-barred appeal if satisfied that there was sufficient cause for the delay (condonation of delay).

Rule 26 — Form and Contents of Appeal

- Every appeal must be preferred separately and in the appellant's own name.
- It is presented to the appellate authority, with a copy forwarded to the authority that made the order; it must contain all material statements and arguments, be complete in itself, and use no disrespectful or improper language.
- The authority that made the order forwards the appeal, with its comments and the relevant records, to the appellate authority without avoidable delay and without waiting for any direction.

Rule 27 — Consideration of Appeal

- Against an order of suspension: the appellate authority decides, in the light of Rule 10 and the circumstances, whether the suspension is justified, and confirms or revokes it accordingly.

Against an order imposing or enhancing a penalty, the appellate authority considers —

- (a) whether the procedure laid down has been complied with, and if not, whether the non-compliance has caused a failure of justice;
- (b) whether the findings are warranted by the evidence on record; and
- (c) whether the penalty (or enhanced penalty) is adequate, inadequate or severe — and may pass appropriate orders, including enhancement (with notice).

Rule 28 — Implementation of Appellate Orders

The authority that made the original order must give effect to the orders passed by the appellate authority.

Part VIII — Revision and Review (Rules 29–29A)

Rule 29 — Revision

Revision is the stage after appeal. The power may be exercised suo motu (on the authority's own motion) or on an application by the Government servant. The authority that decided the appeal cannot revise its own order; only an authority higher than the appellate authority can revise. Competent revising authorities include:

- the **President**;
- the **Comptroller and Auditor-General**, for a Government servant in the Indian Audit and Accounts Department;
- the **Member (Personnel), Postal Services Board**, for a Government servant serving in or under the Postal Services Board;
- the **Head of a Department** directly under the Central Government, for a Government servant in that department;
- the **appellate authority**, within **six months** of the date of the order proposed to be revised; and
- any other authority specified by the President by general or special order.

Scope of revision

- (i) confirm, modify or set aside the order;
- (ii) confirm, reduce, enhance or set aside the penalty, or impose a penalty where none was imposed (with notice before enhancement); or
- (iii) remit the case for such further inquiry as may be considered proper.

STUDY NOTE: Time-limits for revision

Where the appellate authority itself revises under Rule 29(1), it must do so within six months of the order. A revision petition by the Government servant is generally treated as subject to a six-month limitation from the date of the order, barring condonation. The suo motu power of the President / Head of Department is generally not time-barred, though it is expected to be exercised within a reasonable time.

Rule 29-A — Review

The **President** may, at any time, on his own motion or otherwise, review any order passed under these rules where **new material or evidence** — which could not be produced or

was not available when the order was passed, and which has the effect of changing the nature of the case — has come, or has been brought, to his notice.

Part IX — Miscellaneous (Rules 30–35)

Rule 30 — Service of Orders and Notices

Every order, notice or process under these rules is to be served in person on the Government servant concerned, or communicated to him by **registered post**.

STUDY NOTE: Electronic service

Although the rule speaks of “in person” or “registered post,” more recent DoP&T instructions and judicial rulings increasingly accept email and other electronic means as valid modes of service, provided delivery can be authenticated. For strict statutory compliance during disciplinary proceedings, however, Registered Post / Speed Post (with acknowledgement) remains the safe standard for proving service of charge sheets and penalty orders.

Rule 31 — Power to Relax Time-limits and Condone Delay

The competent authority may, for good and sufficient reasons or if sufficient cause is shown, extend any time specified in these rules for anything required to be done, or condone any delay.

Rules 32 to 35 — Closing Provisions

- **Rule 32** — Omitted.
- **Rule 33** — Transitory Provisions.
- **Rule 34 — Repeal and Saving:** the CCS (CCA) Rules, 1957 and the Civilian in Defence Services (CCA) Rules, 1952 stood repealed, with savings for action already taken.
- **Rule 35 — Removal of Doubts:** the President decides any question regarding the interpretation of these rules.

Quick-Revision Capsule (Most-Tested Numbers)

Point	Value / Position
Commencement of CCS (CCA) Rules	1 December 1965
Detention/imprisonment triggering deemed suspension	Exceeding 48 hours
Review of suspension by Review Committee	Before expiry of 90 days
Maximum each extension of suspension	Not exceeding 180 days at a time
Suspension order not valid beyond	90 days, unless extended after review
Outer limit, no charge sheet — Rule 10(1)(a)	270 days (per 2022 amendment)
Outer limit, no charge sheet — Rule 10(1)(aa)/(b) & deemed	2 years (per 2022 amendment)
Minor penalties	Rule 11 (i) to (iv)
Major penalties	Rule 11 (v) to (ix)
Reduction by one stage (minor) — max period	Not exceeding 3 years
Representation on inquiry report	Within 15 days
Conclusion of major-penalty proceeding	18 months from charge sheet
Limitation for appeal	45 days from delivery of order
Appellate authority may revise within	6 months of the order
Review under Rule 29-A	By the President, on new material/evidence

Primary Sources Relied Upon

The statutory positions in these notes are drawn from, and may be verified against, the following primary and official sources:

- CCS (CCA) Rules, 1965 — principal rules, Notification No. F-7/2/63-Ests.(A) dated 20.11.1965 (S.O. 3703), as amended; consolidated text on the DoP&T website (dopt.gov.in).
- CCS (CCA) Amendment Rules, 2022 — G.S.R. 156(E) dated 19.10.2022 (F. No. 11012/04/2016-Estt.A-III) — substitution of the provisos to Rule 10(7).
- DoP&T O.M. No. 11012/04/2016-Estt.(A) dated 23.08.2016 and the Supreme Court judgment in *Ajay Kumar Choudhary v. Union of India*, (2015) 7 SCC 291 — 90-day charge sheet / review of suspension.
- DoP&T O.M. No. 11012/10/2016-Estt.A-III dated 09.11.2017 — classification of posts by Pay Level.
- DoP&T O.M. No. 142/40/2015-AVD.I dated 15.09.2017 — honorarium and allowances to Inquiry/Presenting Officers.
- Department of Posts, GDS (Conduct and Engagement) Rules, 2020 — DoP letter No. 17-30/2019-GDS dated 14.02.2020.
- Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 — read with Rule 3-C of the CCS (Conduct) Rules, 1964.